



CHAPTER 64.

An Act to amend the law with respect to customs in the Isle of Man. A.D. 1937.
[30th July 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Subject as hereinafter provided, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table, shall continue to be payable as from the first day of August, nineteen hundred and thirty-seven, until the first day of August, nineteen hundred and thirty-eight :—

TABLE.

Description of Goods.	Enactment imposing Duty.	
Ale and Beer - - -	Section 8 of the second Act of 1932 and section 4 of the Act of 1936.	22 & 23 Geo. 5. c. 41. 26 Geo. 5. & 1 Edw. 8. c. 45.
Cinematograph Films - -	Section 6 of the Act of 1925, as amended by section 12 of the Act of 1927, section 14 of the Act of 1928 and section 4 of the Act of 1935.	15 & 16 Geo. 5. c. 56. 17 & 18 Geo. 5. c. 20. 18 & 19 Geo. 5. c. 38. 25 & 26 Geo. 5. c. 34. 14 & 15 Geo. 5. c. 24.
Cocoa - - - - -	Section 4 of the Act of 1924.	
	1	

A.D. 1937.	Description of Goods.	Enactment imposing Duty.
23 & 24 Geo. 5. c. 40.	Clocks and watches and component parts of clocks and watches.	Section 6 of the Act of 1925, as amended by section 5 of the Act of 1933.
.	Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925.
20 & 21 Geo. 5. c. 1.	Hop oil - - - -	Section 3 of the Act of 1929.
	Matches - - - -	Section 1 of the Act of 1933.
16 & 17 Geo. 5. c. 27.	Motor cars, including motor bicycles and motor tri-cycles, and their accessories and component parts.	Section 6 of the Act of 1925, as amended by section 6 of the Act of 1926 and section 11 of the Act of 1927.
	Musical instruments, including gramophones, pianolas and other similar instruments; and accessories and component parts of musical instruments, and records and other means of reproducing music.	Section 6 of the Act of 1925, as amended by section 5 of the Act of 1933 and section 4 of the Act of 1935.
	Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the second Act of 1932, section 4 of the Act of 1933 and section 3 of the Act of 1936.
20 & 21 Geo. 5. c. 42.	Spirits - - - -	Section 2 of the Act of 1930.
	Sweets - - - -	Section 2 of the Act of 1929, as amended by section 3 of the Act of 1933.
	Tea - - - -	Section 1 of the Act of 1936.
22 & 23 Geo. 5. c. 16.	Tobacco - - - -	Section 19 of the first Act of 1932.
	Wines - - - -	Section 1 of the Act of 1927, as amended by section 8 of the Act of 1933.

Provided that—

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- (a) where any enactment set out in the second column of the foregoing table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and thirty-eight, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force; and
- (b) the provisions of this section relating to musical instruments, and to articles made wholly or in part of silk, shall have effect subject to the two next following sections of this Act.

2.—(1) The duty of customs payable under section six of the Act of 1925, on reed organs (including harmoniums) removed or imported into the Isle of Man complete shall not be payable on any such organs being Empire products within the meaning of section five of the Act of 1919, as amended by any subsequent enactment.

Exemption
of reed
organs
being
Empire
products.
9 & 10
Geo. 5. c. 74.

(2) This section shall be deemed to have had effect as from the twenty-sixth day of May, nineteen hundred and thirty-seven.

3.—(1) The following provisions of this section shall have effect as respects the preferential rate of any new duties of customs for the time being payable under section four of the Act of 1933 on articles to which this section applies.

Reduction
of duty on
silk
stockings
and socks
being
Empire
products.

(2) The articles to which this section applies are stockings and socks—

- (a) made wholly of silk, or containing silk components the value whereof exceeds twenty per cent. of the aggregate of the values of all the components thereof; and

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- (b) being Empire products within the meaning of section five of the Act of 1919, as amended by any subsequent enactment;

and for the purposes of this section—

- (i) the expression “the existing preferential rate” means the preferential rate provided in subsection (7) of the said section four, namely, five-sixths of the full rate; and
- (ii) the expression “the new preferential rate” means whichever is the higher of the following rates, namely, twenty-eight and eight-ninths per cent. of the value of the article or eight shillings per pound weight.

(3) If only one new duty is for the time being payable under the said section four on an article to which this section applies, the duty shall be payable on the article either at the new preferential rate or at the existing preferential rate, whichever is the lower.

(4) If two or more new duties are for the time being payable under the said section four on an article to which this section applies, the aggregate amount thereof payable in respect of the article shall not exceed whichever of the two following amounts is the less, namely—

- (a) the aggregate amount of those duties which would be so payable if they were charged at the existing preferential rate; or
- (b) the amount of duty which would be so payable if a single duty were charged at the new preferential rate.

(5) This section shall be deemed to have had effect as from the twenty-sixth day of May, nineteen hundred and thirty-seven.

Amendment
and con-
tinuation of
duties on
Irish Free
State goods.

4.—(1) No duty of customs shall be payable on live horses under section ten of the Act of 1936 (which relates to duties on Irish Free State goods), and accordingly—

- (a) paragraph 3 of Part I of the First Schedule to that Act is hereby repealed; and
- (b) paragraph 5 of the said Part I shall be amended by inserting the words “except horses” after the word “animals”.

(2) The foregoing provisions of this section shall be deemed to have had effect as from the seventeenth day of April, nineteen hundred and thirty-seven. A.D. 1937. —

(3) Subject to the foregoing provisions of this section, the duties of customs payable under the said section ten shall continue to be payable as from the first day of August, nineteen hundred and thirty-seven, until the first day of August, nineteen hundred and thirty-eight.

5. This Act may be cited as the *Isle of Man (Customs) Act, 1937.* Short title.

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